

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SOUTH KOREA

Complete Community Opposition How-To

This guide uses the Korean terms and bodies you'll actually run into — the EIA Act and its resident-opinion procedure, the "EIA area" standing rule, administrative appeal and litigation, the Environmental Dispute Mediation Committee — and explains each in plain words the first time. This is a robust democracy where you can organise openly, and the levers genuinely work.

INTRODUCTION & FRAMEWORK

In the late 1990s the South Korean government planned to dam the **Dong River (Donggang)** — the country's last large undammed river, a valley of limestone gorges, caves, and rare wildlife near Yeongwol. It looked unstoppable: a state-backed dam, framed as flood control and water supply. But a broad environmental movement, led by groups like the **Korea Federation for Environmental Movements (KFEM)** and backed by scientists documenting the valley's extraordinary ecology, built a national campaign against it. And in **2000 the government cancelled the dam**. Korea's last wild river was saved. It was one of the modern Korean environmental movement's defining victories — proof that here, an organised public and rigorous science can stop even a state-backed project.

The environmental movement led by KFEM that saved the Dong River drew on a toolkit with one crucial advantage — a favourable **standing** rule. The **Environmental Impact Assessment Act** requires large projects to be assessed and obliges the developer to **gather residents' opinions**; protest, petition, and litigation are fully lawful, and you can organise openly. And Korean courts presume that **residents living within the designated "EIA area" have a legally protected interest**, so they can sue to challenge an approval. But these tools have real limits, and this guide states them plainly. The system leans toward development — the state and big developers are closely coordinated, and public participation is often treated as a box to tick. The **Saemangeum** seawall was fought for fifteen years through two Supreme Court challenges and still completed; the **Miryang** transmission-tower fight, waged for years by elderly farmers, likewise did not stop the towers. So be clear about what winning usually means here: not often a court order that permanently stops a project, but an approval voided because the EIA was skipped or fatally defective, conditions tightened, compensation and modification won through mediation, a project delayed for years until its economics change, a governor persuaded to withhold cooperation, or a redesign that removes the worst harm. Donggang shows the ceiling; the realistic aim is to make a project slow, costly, and legally and politically exposed.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of decisions and dependencies, and a chain breaks at its weakest link. A large Korean project needs its **EIA** and the **resident-opinion procedure**; it ends in a **consultation with the Ministry of Environment** whose conditions bind the developer; it must survive **administrative litigation** brought by residents with **EIA-area standing**; it can be met with **dispute mediation**; and it needs local political cooperation. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the EIA was skipped or fatally defective, the courts can void the approval** — and residents in the EIA area have standing to sue.
- **If harm is ongoing or coming, environmental dispute mediation can win compensation, modification, and conditions** — a distinctively useful Korean route.
- **If public feeling and science are strong, mobilisation can defeat a project** — Donggang proves it.
- **But outright permanent court wins are hard** — so aim for a voided approval, tightened conditions, mediation, delay, a withheld local cooperation, or a redesign, and count each as a win.

Read the whole guide once before you move. Two habits run through it: **use the levers the law gives you** — the resident-opinion procedure, EIA-area standing, administrative litigation, dispute mediation — and **run every front at once**: the documents, the participation, the courts, the mediation, the movement, the press. That combination is what Korea responds to.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The central gate is the **EIA**, under the EIA Act, culminating in a **consultation with the Ministry of Environment (MOE)** whose agreed conditions bind the developer. The **approving authority** (a ministry or local government, depending on the project) grants the approval the EIA supports. **Metropolitan cities, provinces, and the si/gun/gu** hold their own competences and can cooperate — or withhold cooperation. And the **administrative courts** review approvals. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and the resident-opinion procedure. The developer prepares the EIA and must **gather residents' opinions** — through public briefings and, **if residents request, public hearings** — recording whether those opinions were reflected. *Your opening — and it arms every later step*: take part, demand a hearing, and put your objections on the record; a skipped or sham procedure is a defect.

The MOE consultation. The assessment ends in the MOE consultation, whose conditions bind. *Your opening*: press for strong, binding conditions.

The approval. The authority approves. *Your opening*: challenge it by **administrative litigation**, using EIA-area standing.

Construction and operation. *Your opening*: harm and breaches — met by **dispute mediation** and enforcement.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and often state or public-corporation records set the exposure. **What it still needs** — the EIA not agreed, the approval not final or under challenge, financing not closed: whatever's missing is the soft spot. **Who's paying** — for state-backed projects, the public purse, whose spending the legislature and audit bodies scrutinise.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Ministry of Environment** runs the EIA consultation and binds conditions. The **administrative courts** review approvals, with EIA-area standing open to residents. The **Environmental Dispute Mediation Committee** awards compensation and modification. **Local governments** can withhold cooperation. The **Board of Audit and Inspection** examines public money and can investigate on citizens' petition. And Korea's **strong environmental movement (KFEM and others), its scientists, and a free press** are the forces that reach furthest — the combination that saved the Dong River.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the EIA was skipped or defective, whether residents have EIA-area standing, and how strong public feeling and local political cooperation are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Resident-opinion procedure / demand a hearing	15–35%	during EIA	low	On record; conditions or a redo
Administrative litigation (EIA-area standing)	25–50%	1–3 yr	low–mod	Approval voided for a defective EIA
Environmental dispute mediation	25–50%	months–yr	low	Compensation, modification, conditions
Withholding local government cooperation	20–45%	months–yr	low	Project stalled locally
Mobilisation + science	30–55%	months–yr	low	Political defeat (Donggang)
Board of Audit petition	15–35%	months–yr	low	Investigation; pressure
Everything together (defective EIA, public roused)	40–60%	1–3 yr	low–mod	Voided, conditioned, mediated, delayed
Everything together (state-backed, clean process)	20–45%	1–3 yr	low–mod	Delayed, conditioned, redesigned

The levers that move the needle most are **administrative litigation on a defective EIA** (with EIA-area standing), **dispute mediation**, and **mobilisation plus science**, backed by local political pressure. Donggang shows the ceiling (a state-backed dam cancelled). Saemangeum and Miryang are the honest floor (fierce fights that lost the project but built the movement and the standing doctrine). So aim for the full range of wins.

On cost: participating, organising, and using the information-disclosure law are cheap; pro-bono and movement lawyers bring the litigation; dispute mediation is accessible; and this is an open democracy where you can campaign in daylight.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this defect, this standing — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company or public corporation, its owners, its financiers.

2. Where is it, and what does it touch — and are you in the "EIA area"? Get the footprint and the designated EIA area, and lay them over rivers and tidal flats, mountains and forests, farmland and fisheries, communities. **Being inside the EIA area gives you presumed standing to sue**, so establishing that is one of your most important facts.

3. What stage is it at, and what's the next deadline? Is the EIA in its resident-opinion procedure? Has the approval issued (opening administrative litigation)? These openings are time-bound.

4. What does it still need that it lacks? An EIA not agreed, an approval not final, financing not closed, local cooperation not given. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring residents (especially those in the EIA area), fishers and farmers, national environmental groups, scientists, the local government. Donggang united a movement and the science.

What this looks like in real life. A community learns a dam or reclamation is planned on its river or tidal flat, its EIA thin and its hearing skipped. The five questions yield: a state or public corporation behind it; a site harming a river or flats, with residents inside the EIA area (standing); an EIA in process; a project needing approval and local cooperation; and a coalition of residents, scientists, and national groups. That's the Donggang pattern — demand the hearing, build the science, ready the litigation, and rouse the public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Donggang was won on rigorous ecological science. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA report, the MOE consultation and its conditions, the approval, the resident-opinion records, the ecological studies. Korea's **information-disclosure law** forces out what isn't public. Then read the EIA hard for flaws — an understated impact, an ignored alternative, a skipped hearing, a resident-opinion procedure that never genuinely happened (a fatal defect).

Layer two: the ground truth. Dated, located photographs and video of the site, the river, the flats, the wildlife — baseline images before any damage most of all — and the testimony of affected residents and fishers.

Layer three: the science and the map. Commission or gather rigorous ecological science (as Donggang's campaigners did), and lay the project over the river, flats, forest, and — crucially — the EIA area, so the harms and your standing are visible. Walking into court or mediation with the EIA, the science, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA report, the MOE consultation and conditions, the approval, the resident-opinion records, the ecological studies** — from the authorities; force out the rest under the information-disclosure law (8A).
- **The EIA-area designation** — to establish your standing.
- **Ownership and financing** — company and public-corporation records.
- **Independent ecological science** — from scientists and national environmental groups.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Donggang was won by a broad movement married to science. Build yours in four moves.

Start with a tight core. The residents most affected (especially those in the EIA area), the people who know the river or flats, a few tireless organisers, and respected local figures.

Reach the national movement and the scientists. Korea's environmental movement (KFEM and others) and its scientists bring the reach, the standing, and the rigorous ecology that won Donggang. Team up early, and hold meetings where people see the evidence and the science.

Build local political pressure. A governor or mayor who withholds cooperation can stall a project. Cultivate local officials, and make the project a local political issue.

Bring in the lawyers — early. Public-interest and movement lawyers who run administrative litigation and dispute mediation. Establish who has EIA-area standing, and build the case around them.

Build to last. Korean fights can run for years (Saemangeum ran fifteen). Build clear roles, a shared archive, a way to decide together, and a plan for the toll — and keep the coalition broad and the science strong, which is Korea's winning combination.

STEP 4: LEGAL CHALLENGES, STANDING & MEDIATION

Law is a real Korean lever, sharpened by a favourable standing rule and a distinctive mediation route.

The Resident-Opinion Procedure First

Everything downstream is stronger if you used the **resident-opinion procedure** — took part in the briefings, **requested a public hearing**, and put your objections on the record. A skipped or sham procedure is itself a defect that can void an approval.

Administrative Litigation and EIA-Area Standing

If the approval is unlawful — the EIA skipped or **fatally defective** — challenge it by **administrative appeal** and **administrative litigation**. Korea's crucial advantage is standing: **residents within the designated EIA area are presumed to have a legally protected interest**, built through the great reclamation and infrastructure cases, so they can sue. Courts here are cautious about overriding an agency's judgment, so the strongest cases turn on a **procedural or substantive defect in the EIA** — a skipped hearing, an ignored impact, a defective assessment.

Environmental Dispute Mediation

A distinctively useful Korean route: the **Environmental Dispute Mediation Committee** can award **compensation, modification, and conditions** for environmental harm — often faster and surer than litigation, and a real way to win changes and redress even when a court won't stop a project outright.

The Honest Limits

Straight talk: the standing rule and mediation are real levers, but litigation is slow, courts are cautious about substituting their judgment for the agency's, and the system leans toward development. So use the strong tools — the resident-opinion procedure, EIA-area standing, administrative litigation, dispute mediation — but pair them with mobilisation, science, and local political pressure, and count a voided approval, tightened conditions, a mediation award, delay, a withheld cooperation, and a redesign as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal defect. Not "the project is bad" but *"the developer skipped the required public hearing and the EIA ignored this impact — a defect that voids the approval."*

Standing becomes a key that opens the door. *"We live within the EIA area, so we have standing to challenge this approval."*

Harm becomes a mediation claim. *"The dust, the noise, the loss of our fishery — grounds for compensation and modification through dispute mediation."*

The harm becomes a public and scientific story. *"The last wild river / the tidal flats our families have fished — and the science of what will be lost."*

Match it to the venue: the objections to the resident-opinion procedure; the EIA defect to administrative litigation; the harm to dispute mediation; the science and the human story to the press and the local politics.

STEP 5: MEDIA STRATEGY

In Korea, public attention and rigorous science together are powerful — Donggang was won by a movement that made the river's ecology a national cause. A free press, national movements, and scientists make the media front central.

Lead with people and place, and the science. Not "the EIA was deficient" but "the last wild river / the tidal flats our families have fished — and here is the science of what will be lost." Use your strongest material: dated photographs, the ecological science, the map, and named residents.

Work several audiences at once. Local and national press build political pressure; the environmental movement and scientists amplify and lend authority; and the local politics can turn on public feeling. Make it easy: captioned photos, accurate summaries, the science in plain terms, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything, especially where you rely on science. And keep the coalition broad and the message about what's being saved.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information-disclosure request (to the authority).

Subject: Information-disclosure request — [project].

"Under the Information Disclosure Act, we, residents of [place], request the EIA report, the MOE consultation and conditions, the approval, the resident-opinion records, and the ecological studies for [project] at [location]. [Contact.]"

8B — Objection / request for a public hearing.

Subject: Objection and request for a public hearing — [project].

"We, residents of [place] within the EIA area, object to [project]: [the EIA understates this impact; alternatives were ignored]. We request a public hearing under the resident-opinion procedure. [Attach evidence.]"

8C — To a national environmental group / lawyer.

Subject: Request for support and litigation — [project].

"Our community faces [project], which threatens [our river / flats]. We've gathered [the EIA, ecological science, photographs] and — as residents within the EIA area — believe we have standing to challenge a defective approval. We ask for your support, as partners. [Contact and evidence summary.]"

8D — Administrative litigation (to a lawyer).

Subject: Administrative litigation — approval of [project].

"We instruct you to challenge the approval of [project] by administrative appeal and litigation, on the grounds that [the public hearing was skipped / the EIA was fatally defective], relying on our EIA-area standing. [Attach the approval, the EIA and our evidence.]"

8E — Application for environmental dispute mediation.

Subject: Application for environmental dispute mediation — [project].

"We apply to the Environmental Dispute Mediation Committee regarding [project], which causes [dust / noise / loss of fishery], seeking compensation, modification, and conditions. [Attach evidence.]"

8F — To the local government (cooperation).

Subject: Request to withhold cooperation with [project].

"We, residents of [place], ask you not to cooperate with [project], which threatens [our river / flats / community] and conflicts with [local plans]. [Attach evidence.]"

8G — Letter to the press.

Subject: [Community] moves to protect [river / tidal flats] from [project].

"For generations the people of [place] have lived from [the river / the flats] at [location]. Now [project] threatens it — and the science shows what will be lost. We can provide photographs, ecological studies, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our river / flats]. Koreans saved the last wild Dong River from a state-backed dam — with science and a national movement. With the resident-opinion procedure, EIA-area standing, dispute mediation, and mobilisation behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project, its footprint, and whether you're in the EIA area.** EIA-area standing is your key to court.
2. **Use the resident-opinion procedure — object and demand a public hearing (8B).**
3. **Request the documents (8A) under the information-disclosure law, and gather rigorous ecological science.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Get a lawyer for administrative litigation on a defective EIA (8D), and consider dispute mediation (8E).**
6. **Reach the national movement, press local officials, and go public (8C/8F/8H).** Donggang was won this way.

Even lean, those six use your rights, secure your standing, build the record and the science, and open the mediation and political fronts.

WHEN THE SYSTEM IS TILTED

Korea's tools are real, but the system leans toward development, and you must plan for it.

When the state and developer are coordinated. Use the EIA defect and EIA-area standing, dispute mediation, local political pressure, science, and mobilisation, and aim for a voided approval, conditions, mediation, delay, and redesign as real wins.

When participation is a box-ticking exercise. A sham resident-opinion procedure is a defect. Document it — it can void the approval.

When courts defer to the agency. Courts are cautious about overriding an agency's judgment, so build the case on a clear procedural or substantive **defect**, not merely on disagreement.

What still works, and it's a lot. A voided approval on a defective EIA; EIA-area standing that lets residents sue; dispute mediation that wins compensation and modification; local governments that can withhold cooperation; and a movement plus science that has cancelled a state-backed dam.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Korea is a robust democracy, but the closeness of developers, public corporations, and officials can bend a decision, and where it does, you expose it.

How to spot it. Approvals against the evidence; an EIA written for the proponent; a resident-opinion procedure engineered to exclude; contracts steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Board of Audit and Inspection** examines public money and can investigate on citizens' petition. The **Anti-Corruption and Civil Rights Commission** and prosecutors handle graft. The **administrative courts** can void a tainted approval. And Korea's **investigative press and strong civil society** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Board of Audit, the anti-corruption bodies, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents and the science build your proof; establishing your EIA-area standing aims it; organising builds the muscle; the litigation and mediation press the case; the media and local politics raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and your EIA-area standing; use the resident-opinion procedure and demand a hearing; request the records and gather science; photograph the baseline; get a lawyer and reach the national movement.

In the thick of it (months–years): bring administrative litigation on the EIA defect; apply for dispute mediation; press local officials to withhold cooperation; build the mobilisation and open the media front.

The long haul (years): carry the litigation and mediation through; keep the movement and the science alive; hold the line for a voided approval, conditions, a mediation award, delay, a withheld cooperation, a redesign, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in South Korea can be done — a movement and its scientists saved the last wild Dong River from a state-backed dam. Hold both truths. Korea's tools are real: an EIA with a resident-opinion procedure; a favourable EIA-area standing rule that lets residents sue; administrative litigation that voids defective approvals; environmental dispute mediation that wins compensation and modification; local governments that can withhold cooperation; and an open democracy where you can organise freely. And the constraints are real: a development-leaning system, coordinated state and developers, box-ticking participation, and cautious courts — so outright permanent stops are hard.

Here's the discipline that wins. Establish your EIA-area standing, and find the defect — the skipped hearing, the fatally flawed assessment — and gather rigorous science. Use the resident-opinion procedure and demand a hearing. Bring administrative litigation on the defect, and apply for dispute mediation. Press local officials to withhold cooperation, build a broad movement married to science, and carry the story to the

public. Count a voided approval, tightened conditions, a mediation award, delay, a withheld cooperation, and a redesign as wins alongside an outright stop. That's what the Dong River did — the movement, the science, and the public together. So can you.